

PACRA: What do I do first?

Business Information, Starting Company

The first step to registering a business is deciding whether you want to register a business name or a local company. What is the difference between a business name and a company?

- A Business name has no legal personality while a limited liability company is a body corporate, which means that it is a person at Law, that is an artificial person;
- A company is a body corporate and can own property or be sued in its name while a business name is unincorporated body and cannot own property
- In a Business name, liability is unlimited whereas in a company, liability is limited to the amount on the shares or guarantee still unpaid;
- At law, a company is a legal entity which is separate from its members (owners). It continues to exist even after the demise or changes of its members while a business name is not permanent and death usually dissolves it whereas a company has perpetual succession.

Once you have decided which type of business you want to register you will have to submit an application for Name Clearance. You can propose a set of three names in your application. An approved name is valid for 30 days. You can choose to register an approved name within 30 days or reserve the name for a further 90 days. An approved name that is not registered or reserved expires after 30 days. If your approved name expires you will be required to re-apply for name clearance.

What do I get after applying for a name clearance?

- An approved name that is valid for registration for 30 days
- An approved name acceptance letter

How much will this cost me?

- Business name – K111.20

- Local Company – K120.00
- Foreign Company – K266.67

Where can I get the forms?

The forms can be obtained from [Forms | Patents and Companies Registration Agency \(pacra.org.zm\)](#). Remember to select the correct form according to the type of business you want to register

Where can I apply for this service?

- Any PACRA Office ([Contact Us | Patents and Companies Registration Agency \(pacra.org.zm\)](#))
- PACRA Portal ([PACRA](#))
- ZamPortal ([ZamServices \(eservices.gov.zm\)](#))